CONTRACT OF SERVICE · KONTRAK PERKHIDMATAN EMPLOYMENT ACT 1955 (ACT 265) · FOREIGN WORKER

TEMPLATE — COMPLETE EVERY [FIELD] BEFORE SIGNING

[WORKER_NAME] · [PASSPORT_NO] · [JOB_TITLE] · RM [BASIC_SALARY] · [EMPLOYER_NAME]

This contract is made between the employer and the foreign worker named below. It is written in Bahasa Malaysia and English. Both texts have the same meaning; where they differ, the Bahasa Malaysia text prevails, as required by s. 61 of the Employment Act 1955. The worker signs only after the terms have been explained to him or her in a language he or she understands, and keeps a signed copy.

Kontrak ini dibuat antara majikan dan pekerja asing yang dinamakan di bawah. Kontrak ini ditulis dalam Bahasa Malaysia dan Bahasa Inggeris. Kedua-dua teks mempunyai maksud yang sama. Pekerja menandatangani kontrak ini hanya selepas syarat-syaratnya dijelaskan dalam bahasa yang difahaminya, dan menerima satu salinan yang telah ditandatangani.

1. PARTIES (PIHAK-PIHAK)

EMPLOYER / MAJIKAN		SSM NO.	
EMPLOYER ADDRESS / ALAMAT MAJIKAN		PLACE OF WORK / TEMPAT KERJA	
WORKER NAME / NAMA PEKERJA		PASSPORT NO.	NATIONALITY
DATE OF BIRTH	GENDER	WORK PERMIT / PLKS NO.	PERMIT VALID TO

2. APPOINTMENT AND JOB (PELANTIKAN DAN JAWATAN)

JOB TITLE / JAWATAN		SECTOR / SEKTOR	OCCUPATION CODE
COMMENCEMENT DATE / TARIKH MULA	CONTRACT PERIOD (MONTHS)	PROBATION (MONTHS)	EXPECTED END DATE

The employer employs the worker as **[JOB_TITLE]** and the worker accepts the appointment on the terms of this contract. The worker performs only the duties of that job at the place of work stated above; any change of job or workplace requires the worker's written consent and, where the law requires it, the approval of the Labour Department. The worker may not be transferred to another employer.

Majikan menggaji pekerja sebagai **[JAWATAN]** dan pekerja menerima pelantikan ini tertakluk kepada syarat-syarat kontrak ini. Pekerja hanya melaksanakan tugas jawatan tersebut di tempat kerja yang dinyatakan. Sebarang perubahan jawatan atau tempat kerja memerlukan persetujuan bertulis pekerja dan, jika dikehendaki oleh undang-undang, kelulusan Jabatan Tenaga Kerja.

3. WAGES (GAJI)

BASIC WAGE PER MONTH (RM)	DAILY RATE (RM)	HOURLY RATE (RM)	FIXED ALLOWANCE (RM/MONTH)
OVERTIME RATE PER HOUR (RM)	REST-DAY RATE (RM/HOUR)	Public-holiday rate (RM/hour)	PAY DAY (DAY OF MONTH)

Wages are paid monthly by bank transfer into the account named in clause 6, not later than the 7th day after the end of the wage period (s. 19). The basic wage is not less than the minimum wage of RM 1,700 per month for a normal working week of 45 hours. Overtime is paid at 1.5 times the hourly rate; work on a rest day at 2.0 times; work on a public holiday at 3.0 times, with two days' wages in addition for a holiday falling on a normal working day.

Gaji dibayar setiap bulan melalui pindahan bank ke akaun yang dinyatakan dalam fasal 6, tidak lewat daripada hari ketujuh selepas tamat tempoh gaji (s. 19). Gaji asas tidak kurang daripada gaji minimum RM 1,700 sebulan bagi minggu kerja normal 45 jam. Bayaran kerja lebih masa ialah 1.5 kali kadar sejam; hari rehat 2.0 kali; cuti umum 3.0 kali.

CONTRACT OF SERVICE · KONTRAK PERKHIDMATAN EMPLOYMENT ACT 1955 (ACT 265) · FOREIGN WORKER

BANK / BANK	ACCOUNT NO.	ACCOUNT HOLDER

4. WORKING HOURS, REST DAYS AND LEAVE (WAKTU KERJA, HARI REHAT DAN CUTI)

NORMAL HOURS PER WEEK	NORMAL HOURS PER DAY	REST DAYS PER WEEK	SHIFT PATTERN

ANNUAL LEAVE (DAYS/YR)	SICK LEAVE (DAYS/YR)	MATERNITY LEAVE (DAYS)	PAID PUBLIC HOLIDAYS (DAYS/YR)

Annual leave after 12 months' continuous service is 8 days for less than 2 years' service, 12 days for 2 to 5 years, and 16 days for more than 5 years (s. 60A). Paid sick leave is 14, 18 or 22 days per year depending on service, plus 60 days' hospitalisation where admission is necessary (s. 60F). Paid public holidays are 11 days per year. Overtime is limited to 104 hours per month. Female employees are entitled to 98 days' maternity leave.

Cuti tahunan selepas 12 bulan perkhidmatan berterusan ialah 8 hari (kurang 2 tahun), 12 hari (2 hingga 5 tahun) dan 16 hari (lebih 5 tahun). Cuti sakit berbayar ialah 14, 18 atau 22 hari setahun mengikut tempoh perkhidmatan, termasuk 60 hari tahanan hospital. Cuti umum berbayar ialah 11 hari setahun. Kerja lebih masa terhad kepada 104 jam sebulan. Pekerja wanita berhak mendapat cuti bersalin 98 hari.

5. STATUTORY CONTRIBUTIONS AND DEDUCTIONS (CARUMAN DAN POTONGAN)

SOCSO / PERKESO EMPLOYER NO.	EIS EMPLOYER NO.	EPF STATUS (IF APPLICABLE)

The employer pays all statutory contributions — SOCSO (including the Employment Injury and Invalidity Schemes), EIS, and the foreign worker levy of **RM 410 per worker per year** for plantation and agriculture or **RM 250** for manufacturing, construction and services — and may not recover any part of them from the worker. The employer also pays the FOMEMA medical screening, the security bond, the PLKS renewal fee and the return air ticket.

Majikan membayar semua caruman berkanun — PERKESO, SIP dan levy pekerja asing (RM 410 setahun bagi perladangan dan pertanian, RM 250 bagi pembuatan, pembinaan dan perkhidmatan) — dan tidak boleh menuntut semula caruman tersebut daripada pekerja. Majikan juga membayar pemeriksaan perubatan FOMEMA, bon jaminan, bayaran pembaharuan PLKS dan tiket kapal terbang pulang.

No deduction is made for agent fees, placement fees, levy, bond, FOMEMA, insurance or air ticket.

6. ACCOMMODATION, TRANSPORT AND MEDICAL CARE (PENGINAPAN, PENGANGKUTAN DAN RAWATAN)

ACCOMMODATION PROVIDED	ADDRESS	Rent charged to worker (RM)

TRANSPORT TO WORKPLACE	Transport charged to worker (RM)	PANEL CLINIC

Bed and mattress Clean water Electricity Toilet / bathroom

Accommodation complies with the Workers' Minimum Standards of Housing, Accommodation and Amenities Act 1990 (Act 446) and the 2020 amendments: at least 3.0 square metres of sleeping space per worker, a bed per worker, proper ventilation, water and sanitation. Where the employer deducts rent, the deduction is stated here and may not exceed RM 100 per month without the worker's written consent approved by the Labour Department.

7. SAFETY, CONDUCT AND TERMINATION (KESELAMATAN, KELAKUAN DAN PENAMATAN)

The worker must comply with the Occupational Safety and Health Act 1994 (Act 514) and the employer's safety rules, wear protective equipment, undergo safety training and report accidents. The employer must provide a safe workplace and insurance coverage for employment injury under SOCSO. Either party may terminate this contract by giving notice as required by s. 12: 4 weeks where service is less than 2 years, 6 weeks for 2 to 5 years, and 8 weeks for more than 5 years, or by paying wages in lieu. Summary dismissal without notice is permitted only for misconduct after due inquiry.

Pekerja hendaklah mematuhi Akta Keselamatan dan Kesihatan Pekerjaan 1994 dan peraturan keselamatan majikan, memakai peralatan perlindungan, mengikuti latihan keselamatan dan melaporkan kemalangan. Mana-mana pihak boleh menamatkan kontrak dengan notis 4, 6 atau 8 minggu mengikut tempoh perkhidmatan, atau dengan bayaran gaji sebagai ganti notis.

Signed over the common seal

COMPANY SEAL / COP SYARIKAT

8. DECLARATION AND SIGNATURES (PERAKUAN DAN TANDATANGAN)

The worker declares that he or she has read or been read this contract, understands it, and that no fee was paid to any person in Malaysia or abroad to obtain this job other than the costs permitted by law. The employer declares that the contract reflects the approved quota and the terms submitted to the Labour Department.

PLACE / TEMPAT	DATE / TARIKH	WITNESS

FOR THE EMPLOYER / BAGI PIHAK MAJIKAN
[EMPLOYER_NAME] · company stamp

WORKER / PEKERJA
[WORKER_NAME] · passport no.

Witnessed by the officer who explained the terms in the worker's language: name, designation and signature.

INTERPRETER / PENTERJEMAH
Name, language, signature

A copy of this contract, together with the PLKS and the worker's passport, is kept by the employer and a copy is given to the worker. The contract is lodged with the Labour Department where required.

Attachments

Passport copy Photograph PLKS / permit FOMEMA result KDN quota approval